

Smt. Anjali Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · Writ-C No. 22276 of 2022 (All.) · Writ-C No. 22276 of 2022 · **Writ disposed; liberty to file para 6.8 objection; coercive recovery stayed eight weeks.**

HEADNOTE

A consumer's challenge to a recovery citation of Rs. 5,92,155 was disposed of without any opinion on merits after the distribution licensee stated that an objection would be decided in a time-bound manner. Liberty was granted to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, it is to be decided within the next four weeks after hearing, with no coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Anjali Pandey approached the Allahabad High Court seeking certiorari to quash a recovery citation dated 17 June 2022 for Rs. 5,92,155 issued by the distribution licensee, and mandamus restraining interference with her peaceful living in pursuance of that citation. Counsel for the Power Distribution Corporation stated on instructions that she could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation

HOLDING

Without expressing any opinion on merits, the writ challenging a recovery citation is disposed of by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the designated respondent within four weeks; such objection, if filed in time, shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a recovery citation disposed of by relegating the consumer to the para 6.8 objection, without deciding the demand on merits. ¶ 1

para-6.8-objection-alternate-remedy Liberty granted to file a para 6.8 objection within four weeks, to be decided within the next four weeks after hearing. ¶ 1

assessment-6.8-alternate-remedy Challenge to the recovery citation of Rs. 5,92,155 left to the statutory 6.8 objection rather than certiorari on merits. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the 6.8 objection is filed in time it must be decided after hearing, and coercive action on the citation is stayed for eight weeks or till disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 17.6.2022 FOR RS. 5,92,155

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

